Preface

A few years ago, I began writing op-eds for newspapers with a view to engaging with those outside my profession. One of the early comments that I received was that my writing was still somewhat 'legalistic' and difficult to access for those with little or no training in law. This turned out to be a wider complaint against lawyers and legal scholars – that their writing was often hard to read and difficult to understand. The vast majority of writing by lawyers (including commentary which is directed towards the general public) is remarkably inaccessible, although this is gradually changing with time. Addressing this complaint was the primary impetus behind the book.

The Supreme Court and high courts are at the epicentre of public life in India. Almost every political, economic, religious and historical question is (rightly or wrongly) formulated as a legal or constitutional question and arises for judicial decision. Some of the cases that the Supreme Court and high courts decide are etched in public memory because of their social significance or political impact. The Mandal Commission case set the benchmark for determining who the beneficiaries of reservation could be, while the Kesavananda case imposed limitations on Parliament's authority to amend the Constitution. Entire volumes are dedicated to these cases, which have been analysed and dissected threadbare.

For each of these landmark cases, however, there is a catalogue of cases that is not in the general public consciousness – or at any rate, no longer in the public consciousness if it once was. Each chapter of this book focuses on one of these 'forgotten' cases – cases that are not in the public memory, but should be. The cases are divided into four overarching themes – politics, gender, religion and national security. The cast of characters in these chapters cuts across class, caste and community – from the Brahmin students of Madras seeking admissions to college to the local politician in